cre8: UK licensing, payments and launch checklist

Prepared: 11 November 2026
Scope: UK-based music community, streaming/downloads, subscriptions and a possible Sample Pack marketplace.
Status: practical issue-spotting guide, not legal advice or a substitute for a UK solicitor/accountant.
Related: monetization strategy (monetization-strategy.pdf), business plan (business-plan-uk.pdf).

1. Decisions to make before accepting payments

cre8 combines user uploads, listening, downloads, messaging and controlled distribution. It is not simply a software subscription or a static download shop. Different rights and legal duties can apply to each activity, even when free.

Decision	Suggested low-complexity starting position	Evidence/owner
Business identity	Choose sole trader or limited company with advice; clearly identify the contracting trader	Founder + accountant: entity, bank/accounting records and customer disclosures
Customer/seller scope	UK-first pilot; sellers and paying pilot creators 18+	Founder: geographic/age eligibility rules and proportionate enforcement
First paid product	cre8's own monthly Creator Pro workflow subscription	Product + solicitor: accurate benefit and cancellation terms
Music catalogue	Curated uploads with documented permissions, not assumed rights	Rights lead + music solicitor: rights records and licence agreements
Marketplace	Defer until seller, tax, payment and entitlement model is approved	Solicitor + accountant + provider: written money-flow diagram
Territories	Match streaming, downloads and sample-use rights to agreed territories	Rights lead: restrictions and delivery controls, including shared links

Naming a product "B2B" does not automatically remove consumer protections: whether a DJ/producer is acting as a consumer or a business depends on the facts. An 18+ term also does not by itself settle child-access duties.

2. Music rights: what needs permission?

Separate the layers

Layer	Example	Questions for cre8
Composition/publishing	Melody, lyrics, underlying song	Who controls communication/making-available and relevant reproduction rights? Are publishers/PRS/MCPS involved?
Sound recording/master	The uploaded recording	Can the uploader license hosting, streaming, previews, downloads and processing? Does a label control it?
Performers/contributors	Vocalist, session player, collaborators	Are required performer permissions, releases and collaborator agreements in place?
Samples/remixes/artwork	Borrowed recording or composition, cover image	Is third-party use cleared for these activities and territories, including onward sample licensing?

Copyright arises automatically; ownership does not follow merely from possessing a WAV file or paying for a subscription [L1]. A producer can control a master without controlling all publishing or incorporated samples.

Permissions the service must actually have

Ask a music solicitor to draft an uploader agreement covering the specific operations: upload/storage, backup, transcoding, preview generation, display of artwork/metadata, streaming, authorized downloads, pack ZIP creation and required service-provider sublicensing. Scope it by audience, territory, duration and termination; do not take unrelated ownership of creators' music.

- A-List status is access approval, not a copyright licence.
- A private pack or message does not automatically remove copyright duties.
- Free tracks still require relevant permissions.
- There is no blanket "under 30 seconds" or "small sample" safe rule.
- "Royalty-free" means a particular licence model, not copyright-free.
- Buying a sample library often permits use in a finished track, not resale of the isolated samples as a new Sample Pack.
- An uploader warranty is useful evidence/contractual protection, not proof of clearance or a complete defence for the platform.

PRS/MCPS and PPL: obtain a service-specific answer

Describe the actual product to PRS for Music: user-uploaded repertoire, on-demand full tracks, previews, permanent downloads, private grants, Sample Packs, paid subscriptions, territories and expected usage. Obtain a written assessment/quote for any represented composition/mechanical rights [L2]. Membership, a small audience, direct artist permission or a free tier does not automatically resolve rights already controlled by publishers or societies. Do not assume the smallest online licence covers this entire service.

PPL expressly identifies user-upload services and on-demand track streaming/ downloads among uses requiring direct recording-rightsholder licences rather than its listed online licences [L3]. Its limited clip licence has conditions, including no subscription/pay-per-play use; it is not a cheap substitute for cre8's complete service. A venue's TheMusicLicence is not the answer either.

Financial gate: obtain any minima, usage royalties, reporting requirements and repertoire/territory exclusions before paid or public music operation. The hosting budgets contain **no quoted music royalties or collective fees**. If rights cannot be established, restrict/remove that content rather than launching it on the assumption that a later takedown will be enough.

3. Sample Pack buyer licences and rights complaints

Have the buyer licence state, in plain language:

- The seller/licensor identity, pack version, files and licence version.
- Permitted personal/commercial use in new productions and any limits.
- Whether attribution is required and whether rights are non-exclusive.
- Prohibitions on standalone redistribution, resale and sharing the source files.
- The position on Content ID claims, sample-library registration, machine-learning use and sublicensing, rather than leaving those rights ambiguous.
- Duration/territory, update policy, infringement reporting and remedies.

Preserve the accepted version, purchase record and immutable file manifest or hashes. The current editable pack membership and free-form licence text are not an adequate purchase ledger. A later pack edit must not silently replace what a buyer bought. Preserve lawful purchase access when a seller cancels Pro, subject to a documented takedown/refund process where continued delivery is unlawful.

Provide a visible rights-reporting route, an evidence-based review/removal process, an appeal/escalation route and repeat-abuse handling. Prevent removed content from continuing through CDN caches or share links. Preserve necessary records without retaining unlawfully accessible files indefinitely.

Seek advice on the UK Electronic Commerce Regulations hosting-liability conditions and cre8's actual role. Do not copy a US DMCA policy and assume that it guarantees UK protection, or assume a notice-and-takedown process alone licenses the service.

4. Consumer checkout, downloads and subscriptions

Minimum customer-facing information

Before payment show the trader's name, geographic address/contact details, product description/compatibility, full mandatory price, applicable taxes, billing frequency, minimum commitment, renewal/cancellation terms and complaint route. Let buyers correct order errors and use an unambiguous payment-obligation button. Supply terms and confirmation on a durable medium, such as email [L4]. Keep evidence of the version accepted, not only a live editable web page.

Do not advertise a consumer price and add unavoidable processing/platform charges at the end. Have any surcharge policy reviewed; do not pass through prohibited consumer card surcharges.

Digital downloads are not the same as Creator Pro

For immediately supplied paid digital content, the normal cancellation right can be lost only where the required prior express consent to immediate supply and acknowledgement of losing that right are obtained and confirmed [L4]. Record separate affirmative choices; do not rely on a pre-ticked box or a buried terms clause. Have checkout wording legally reviewed.

Creator Pro may be a service or mixed contract, not simply a downloadable file. Service commencement, proportionate payment and cancellation need the correct rules; do not use a blanket download waiver to remove all subscription rights. Loss of a change-of-mind right does **not** remove statutory remedies for faulty or misdescribed content/services. Avoid blanket "no refunds" policies [L5].

Subscription changes: confirm commencement before launch

At this review date, the October 2026 government material links **draft** subscription guidance describing application to contracts from **1 January 2027**, with the underlying regulations subject to parliamentary approval [L6]. Do not treat this target as a verified final commencement date.

Have counsel check the enacted rules, transitional treatment and launch date. Design now for clear pre-contract information, renewal/trial reminders, straightforward online cancellation, cancellation confirmation and the required initial/renewal cooling-off rights where applicable. Monthly billing is not an automatic exemption. Keep a supported cancellation route if the portal fails.

5. Payments, payouts and fraud

For Pro, cre8 sells its own service. Use hosted checkout/billing, tokenized provider identifiers and an accessible billing portal. Do not store card numbers or CVVs. Hosted checkout reduces card-data exposure but does not automatically remove every PCI, security, fraud or merchant obligation. Support the provider's strong customer authentication/3-D Secure flows and subsequent recurring-payment requirements rather than bypassing challenges.

A marketplace is different: identify who sells the pack, contracts with the buyer, invoices, receives the funds, bears refunds/disputes and pays artists. Distinguish a payment processor from a merchant of record; ordinary checkout does not automatically make the provider responsible for every tax/refund duty.

The FCA warns that transferring funds between parties can be a regulated payment service. The commercial-agent exclusion has conditions and does not simply cover a platform acting for both buyer and seller [L7].

- Prefer a suitable regulated marketplace provider with connected seller accounts and its onboarding/KYC/payout processes.
- Obtain payment-perimeter advice on the exact arrangement; provider use is not by itself a legal exemption for cre8's activities.
- Do not create stored balances, escrow, a wallet or manual pooled artist payouts without specialist approval.
- Agree reserves, payout delays and negative-balance/refund recovery with the provider and sellers. A small accounting reserve is not legal safeguarding.
- Quote all products: Payments, Billing, Connect, Tax, currency conversion, payouts and disputes can have separate fees [L8].

For implementation: verify webhook signatures, reject replays, process events idempotently, reconcile out-of-order/missing events and persist a server-side entitlement ledger. A successful checkout redirect is not proof of payment. Do not allow owner grants or A-List approval to bypass paid entitlements.

6. VAT, accounting and international exposure

HMRC currently publishes a UK VAT registration threshold of **GBP 90,000**: test rolling 12-month taxable turnover and expected turnover in the next 30 days [L9]. Voluntary registration is possible. Reverse-charge overseas services can affect registration turnover; obtain advice on Render/cloud/software bills. Being below the threshold is not a general exemption from all tax obligations.

- If registered and standard-rating applies, a GBP 9 VAT-inclusive price contains GBP 1.50 output VAT; the business does not keep the full GBP 9.
- If not registered, do not charge VAT or issue documents implying it is.
- For digital marketplace sales, HMRC's rules can make the platform responsible for VAT on the underlying supply, not just its commission [L10]. Have an accountant decide principal/agent/deemed-supplier treatment and turnover calculations from the actual contracts and checkout.
- Cross-border consumer digital sales may require destination VAT/GST compliance even when UK turnover is low. Check current non-Union OSS/local registration rules for EU sales; do not rely on UK thresholds or old MOSS terminology.
- Preserve appropriate customer-location evidence, tax records, receipts, refunds, provider settlements and seller statements. Agree retention schedules rather than deleting statutory records on account closure.
- Ask whether digital-platform seller reporting applies to the actual activities; digital files, personal services and events may need different analysis.
- Account for income/corporation tax and founder drawings/payroll separately. GMV is not necessarily platform revenue; cash receipts are not profit.

Start with UK-only selling if appropriate, but actually enforce it. Public worldwide streams still raise international licensing/data issues even if only UK residents can buy.

7. Privacy, online safety and the deployed stack

cre8 holds accounts, messages, media, access grants, analytics and push subscriptions. Map controller/processor roles, lawful bases, privacy notices, processor agreements, security, retention, access/deletion requests and incident response. Check whether an ICO data-protection fee is due [L11].

Assess international transfers for Render, backups, Cloudflare and payment/ support providers, including subprocessors and remote access. A UK business, an EU region or encryption alone does not settle every transfer question; use applicable adequacy or appropriate safeguards where needed [L12].

Inventory cookies, local storage and analytics SDKs. Essential login/security storage and optional tracking are different. Assess current PECR exemptions and any applicable reform; obtain consent where required before optional tracking. Marketing emails/push need a separate compliant basis and opt-out; payment does not mean consent to all marketing [L13].

User uploads, discovery and messaging make an **Online Safety Act scope assessment necessary**. If in scope, carry out the illegal-content risk assessment, records, reporting/complaints and proportionate safety measures. Complete the children's access assessment and, if applicable, the children's risk assessment/protection measures [L14]. Small size or "18+" terms are not automatic exclusions. Review the ICO Children's Code where the service is likely to be accessed by under-18s [L15]. Decide age policy before launch, not only at marketplace seller signup.

Operational controls must support the promises: secure admin access, grant revocation, tested backups, rate limits, bounded ffmpeg jobs and lawful retention. The optional PostgreSQL compatibility layer does not establish a commerce ledger, production S3/R2 adapter, durable media pipeline or high availability. Do not promise a statutory-rights waiver or uptime SLA to compensate for these gaps.

8. Legal/contract package and launch sign-off

Deliverable	Review owner	Paid-launch gate
Entity, tax/VAT position and invoices	Founder + UK accountant	Before charging
User/creator terms and privacy/cookie notices	UK technology solicitor + product	Before inviting users to the relevant service
Music grants and any society/direct licences	Music solicitor + rightsholders	Before affected streaming/downloads, whether paid or free
Pro checkout, renewal, cancellation and refunds	Consumer-law review + product	Before subscriptions
Safety scope/risks, reporting and moderation	Founder/safety owner + adviser	Existing duties may already apply; do not wait for revenue
Buyer licence/version receipt and seller agreement	Music/commerce solicitor	Before paid packs
Payment money-flow and provider approval	Payment adviser + provider	Before seller funds flow
Tax/platform reporting determination	Accountant	Before marketplace launch
Third-party software, fonts, artwork and ffmpeg notices	Engineering + legal where needed	Before relevant distribution

Audit actual dependency/build licences, especially ffmpeg codec/build choices: do not infer LGPL/GPL/patent obligations just from an npm package name. Provider approval and content policies also matter; unsupported business models can lead to withheld funds or account closure.

These are not executable legal templates. Budget for tailored review and music licensing quotes; the business plan (business-plan-uk.pdf) has provisional allowances, not a guarantee of affordable clearance.

Sources and update policy

Sources checked 11 November 2026; primary summaries are paraphrased. Recheck law, guidance, licence scope and account pricing immediately before launch, especially the subscription regime. UK-wide planning does not decide which UK jurisdiction governs every contract; preserve mandatory consumer protections.

Ref	Source
L1	UK copyright overview
L2	PRS digital platforms and streaming
L3	PPL: online licences and uses requiring direct permission
L4	GOV.UK: online selling and digital content
L5	GOV.UK: refunds and consumer rights
L6	Government subscription guidance page, October 2026 draft guidance
L7	FCA: commercial-agent exclusion and payment-services scope
L8	Stripe UK pricing; illustrative provider, not an endorsement
L9	HMRC: when to register for VAT, standard VAT rate
L10	HMRC: digital services and platforms
L11	ICO: data-protection fee
L12	ICO: international transfers
L13	ICO: PECR cookies/storage guidance
L14	Ofcom: service compliance steps, children's access assessments
L15	ICO: Children's Code
L16	GOV.UK: choosing a business structure